



UNIT I

Historical Development of Labour Law & ILO

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What is Labour Jurisprudence?

- Jurisprudence denotes knowledge of law
- Labour / industrial jurisprudence concerns law relating to labour and industry.
- It develops through labour legislation, the constitutional framework and judicial law-making.
- In India, its post-Independence development is closely linked with the Constitution, Parliament and the Supreme Court.

Why are Labour Laws Important?

Worker protection

- Fair wages
- Safe working conditions
- Reasonable working hours
- Weekly holidays

Industrial peace & security

- Collective bargaining
- Conciliation and settlement of disputes
- Social security for sickness, maternity, injury, disability, old age and death

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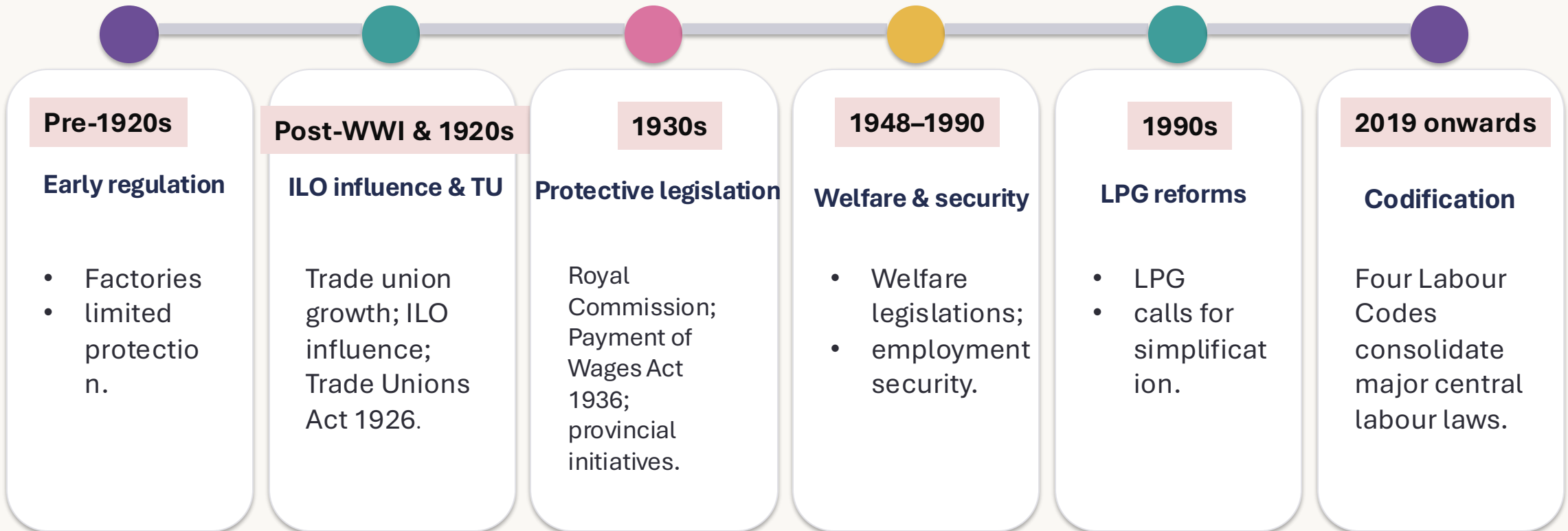
EVOLUTION OF LABOUR JURISPRUDENCE INDIA



Evolution of Labour Law in India

HISTORY

Six broad periods



1990s: Liberalisation, Privatisation & Globalisation

- Shift towards a less state-controlled economy.
- Greater private-sector participation and reduced public-sector monopoly.
- Growth of contractual and outsourced employment.
- Service-sector expansion: IT, BPOs, start-ups, logistics, e-commerce and platform work.
- Calls for simplification and rationalisation of labour laws.

Why Were Labour Codes Introduced?

Problems in the earlier framework

- Multiplicity of central labour laws
- Different definitions and overlapping provisions
- Multiple authorities and compliance requirements
- Changing nature of employment

Policy objectives

- Simplify and consolidate laws
- Improve ease of doing business
- Digitise compliance
- Adapt regulation to new forms of employment

The Four Labour Codes

- Code on Wages, 2019 — wages, minimum wages, bonus and equal remuneration.
- Industrial Relations Code, 2020 — trade unions, industrial disputes and standing orders.
- Code on Social Security, 2020 — social-security schemes, including coverage concepts for unorganised, gig and platform workers.
- Occupational Safety, Health and Working Conditions Code, 2020 — safety, health, working conditions and welfare.

A New Labour-Law Question: Technology & Work

- Contemporary work increasingly includes algorithmic management and platform-based work.
- Algorithms may allocate work, determine incentives, measure productivity or affect account access.
- AI-assisted hiring and evaluation can raise concerns about bias, transparency and accountability.
- The source material highlights automation, AI and job displacement as emerging areas requiring labour-law attention.

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**ILO and its impact on
Labor legislations in India**



International Labour Organization (ILO)

- Founded in 1919 in the aftermath of the First World War.
- Founded on the conviction that social justice is essential to universal and lasting peace.
- The ILO is the **only tripartite UN agency**.
- It brings together governments, employers and workers to set labour standards, develop policies and devise programmes.

The ILO's Four Strategic Objectives

- Set and promote standards and fundamental principles and rights at work.
- Create greater opportunities for women and men for decent employment and income.
- Enhance the coverage and effectiveness of social protection.
- Strengthen tripartism and social dialogue.

Tripartism & Social Dialogue

- ILO decision-making brings together three constituents: governments, employers and workers.
- Tripartism ensures that social partners participate in developing labour standards and policies.
- Social dialogue supports consultation, negotiation and cooperation on labour and employment issues.

ILO and India

- India is a founding member of the ILO.
- India has been a permanent member of the ILO Governing Body since 1922.
- The first ILO Office in India began in 1928.
- ILO work in India has included rural labour, women workers, employment generation, occupational safety and health, social security, migration and industrial relations.

Fundamental ILO Conventions

- Fundamental rights cover: freedom of association & collective bargaining; elimination of forced labour; abolition of child labour; and elimination of discrimination.
- India has ratified the fundamental conventions on forced labour, child labour and equal remuneration/non-discrimination.
- India has not ratified Convention Nos. 87 (Freedom of Association) and 98 (Right to Organise and Collective Bargaining).
- India has not ratified OSH Conventions Nos. 155 and 187, added to the fundamental framework in 2022.

**1. Freedom of Association and Protection of the Right to Organize Convention, 1948.
(NOT RATIFIED)**

**2. Right to Organise and Collective Bargaining Convention, 1949
(NOT RATIFIED)**

**9. Occupational Safety and Health Convention, 1981
(No. 155)
(NOT Ratified)**

**10. Promotional Framework for Occupational Safety & Health Convention, 2006 (No. 187)
(NOT Ratified)**

**3. Forced Labour Convention, 1930
(Ratified by India)**

The TEN Fundamental ILO Conventions

**7. Equal Remuneration Convention, 1951
(Ratified) by India**

**4. Abolition of Forced Labour Convention, 1957
(Ratified by India)**

**5. Minimum Age Convention, 1973
(Ratified by India)**

**6. Worst Forms of Child Labour Convention, 1999
(Ratified by India)**

8. Discrimination (Employment and Occupation) Convention, 1958 (Ratified by India)

Forced Labour: ILO Standards & India

ILO

- Convention No. 29 — Forced Labour, 1930
- Convention No. 105 — Abolition of Forced Labour, 1957
- **India ratified C29 in 1954 and C105 in 2000.**
- C29: general prohibition; C105: specific forms to be abolished.

India

- Article 23 prohibits trafficking and forced labour.
- Bonded Labour System (Abolition) Act, 1976
- Indian law addresses bonded labour and related exploitation.
- PUDR v. Union of India (1982): broad interpretation of forced labour.

Child Labour: ILO Standards & India

- Convention No. 138 — Minimum Age, 1973.
- Convention No. 182 — Worst Forms of Child Labour, 1999.
- India ratified both in 2017.
- Worst forms include slavery-like practices, trafficking, forced labour, armed conflict, prostitution/pornography, illicit activities and hazardous work.
- India's framework includes Articles 21A, 23, 24, 39(e)–(f) and the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 as amended in 2016.

Equal Remuneration & Non-Discrimination

ILO standards

- C100 — Equal Remuneration, 1951
- C111 — Discrimination (Employment and Occupation), 1958
- India ratified C100 in 1958 and C111 in 1960.
- C100 focuses on equal remuneration for men and women for work of equal value.

Indian framework

- Articles 14, 15, 16 and 21 support equality and non-discrimination.
- Article 39(d): equal pay for equal work.
- Equal Remuneration Act, 1976 was replaced by the Code on Wages, 2019.
- Randhir Singh v. Union of India: equal pay principle linked to Articles 14 and 16 read with Article 39(d).

Work of Equal Value vs Similar Nature of Work

Work of equal value

- Can compare different jobs.
- Considers skill, effort, responsibility and working conditions.
- Allows a wider comparison based on the overall value of work.

Same / similar nature of work

- Focuses on similarity in skill, effort, experience and responsibility.
- Code on Wages, 2019 uses this formulation.
- The source material notes that the Indian formulation remains narrower than the ILO 'equal value' approach.

Occupational Safety & Health

- Convention No. 155 — Occupational Safety and Health, 1981.
- Convention No. 187 — Promotional Framework for OSH, 2006.
- Both were added to the ILO fundamental framework in 2022.
- India has not ratified C155 or C187.
- The OSH Code, 2020 addresses occupational safety, health, workplace conditions, employer responsibilities, safety committees, health examinations, accident reporting and welfare facilities.

ILO Influence on Indian Labour Law

- ILO standards have influenced Indian labour legislation and policy.
- The 1920s saw important labour legislation alongside the growth of the ILO and trade unions.
- Protective legislation developed around working conditions, wages, social security, child labour, forced labour, equality and industrial relations.
- ILO standards provide an international benchmark against which Indian labour law and practice can be assessed.

Key Takeaways

- Indian labour law evolved from early protective regulation to a constitutional welfare framework and, later, labour-law codification.
- The ILO institutionalises tripartism and develops international labour standards.
- India has been closely associated with the ILO since its foundation.
- Ratification of an ILO Convention creates international obligations; non-ratification does not prevent India from adopting similar domestic standards.
- The contemporary challenge is to protect workers while responding to informalisation, platform work, automation and AI.